

Confirmation of Co-operation and Representation

Tenant/Landlord

TENANT:**LANDLORD:**

For the transaction on the property known as:

DEFINITIONS AND INTERPRETATIONS: For the purposes of this Confirmation of Co-operation and Representation:

"Landlord" includes a lessor, seller or vendor, or a prospective landlord, lessor, seller or vendor and "Tenant" includes a lessee, buyer or purchaser or a prospective tenant, lessee, buyer or purchaser and "lease" includes a sale, and "Agreement to Lease" includes an Agreement of Purchase and Sale. Commission shall be deemed to include other remuneration.

The following information is confirmed by the undersigned salesperson/broker representative(s) of the Brokerage(s). If a Co-operating Brokerage is involved in the transaction, the Brokerages agree to co-operate, in consideration of, and on the terms and conditions as set out below.

DECLARATION OF INSURANCE: The undersigned salesperson/broker representative(s) of the Brokerage(s) hereby declare that he/she is insured as required by the Trust in Real Estate Services Act, 2002 (TRESA).

1. LANDLORD BROKERAGE (Single Representation)

- a) ☐ The Landlord Brokerage or a Designated Representative of the Landlord Brokerage represents the interests of the Landlord in this transaction. It is further understood and agreed that:
- 1) ☒ Neither the Landlord Brokerage nor a Designated Representative of the Landlord Brokerage is representing the Tenant and has not entered into a representation agreement with the Tenant.
 - 2) ☐ The Landlord Brokerage or a Designated Representative of the Landlord Brokerage is providing assistance to the Tenant and the Tenant is a self-represented party.
 - 3) ☐ The Landlord client and Tenant client are each separately represented by different designated representatives of the same Brokerage and there is no multiple representation.

Additional comments and/or disclosures by Landlord Brokerage:

2. LANDLORD BROKERAGE (Multiple Representation)

- a) ☐ The Landlord Brokerage has entered into a Representation Agreement with the Tenant and there is Multiple Representation.
- b) ☐ The Designated Representative who represents the Landlord also represents the Tenant and there is Multiple Representation.

Additional comments and/or disclosures by Landlord Brokerage: (e.g., The Landlord Brokerage represents more than one Tenant offering on this property.)

3. PROPERTY LEASED BY TENANT BROKERAGE

- a) ☐ The Brokerage or a Designated Representative of the Brokerage represents the Tenant and the Brokerage will be paid by the Tenant directly.
- b) ☐ The Brokerage or a Designated Representative of the Brokerage represents the Tenant and the Brokerage will be paid according to the Commission Agreement entered into between the Tenant and the Landlord.

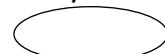
4. CO-OPERATING BROKERAGE**a) ☐ CO-OPERATING BROKERAGE – REPRESENTATION:**

- 1) ☐ The Co-operating Brokerage or a Designated Representative of the Co-operating Brokerage represents the interests of the Tenant in this transaction.

b) ☐ CO-OPERATING BROKERAGE – COMMISSION:

- 1) ☒ The Landlord Brokerage will pay the Co-operating Brokerage the commission as indicated in the MLS® information for the property in the amount of to be paid from the amount paid by the Landlord to the Landlord Brokerage.
(Commission As Indicated In MLS® Information)
- 2) ☐ The Co-operating Brokerage will be paid as follows:

Additional comments and/or disclosures by Co-operating Brokerage: (e.g., The Co-operating Brokerage represents more than one Tenant offering on this property.)

INITIALS OF TENANT(S)/LANDLORD(S)/BROKERAGE REPRESENTATIVE(S) (Where applicable)**TENANT****CO-OPERATING/TENANT BROKERAGE****LANDLORD****LANDLORD BROKERAGE**

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Commission will be payable as described above, plus applicable taxes.

COMMISSION TRUST AGREEMENT: If the above Co-operating Brokerage is receiving payment of commission from the Landlord Brokerage, then the agreement between Landlord Brokerage and Co-operating Brokerage further includes a Commission Trust Agreement, the consideration for which is the Co-operating Brokerage procuring an offer for a trade of the property, acceptable to the Landlord. This Commission Trust Agreement shall be subject to and governed by the MLS® rules and regulations pertaining to commission trusts of the Landlord Brokerage's local real estate board, if the local board's MLS® rules and regulations so provide. Otherwise, the provisions of the OREA recommended MLS® rules and regulations shall apply to this Commission Trust Agreement. For the purpose of this Commission Trust Agreement, the Commission Trust Amount shall be the amount noted in Section 4 above. The Landlord Brokerage hereby declares that all monies received in connection with the trade shall constitute a Commission Trust and shall be held, in trust, for the Co-operating Brokerage under the terms of the applicable MLS® rules and regulations.

SIGNED BY THE BROKER/SALESPERSON REPRESENTATIVE(S) OF THE BROKERAGE(S) (Where applicable)

.....
(Name of Co-operating/Tenant Brokerage)

.....
(Name of Landlord Brokerage)

.....
Tel.: Fax:

.....
Tel.: Fax:

.....
(Authorized to bind the Co-operating/Tenant Brokerage) (Date)

.....
(Authorized to bind the Landlord Brokerage) (Date)

.....
(Print Name of Salesperson/Broker/Broker of Record)

.....
(Print Name of Salesperson/Broker/Broker of Record)

CONSENT FOR MULTIPLE REPRESENTATION

The Tenant and Landlord confirm that they have previously consented to Multiple Representation.
The Tenant and Landlord consent with their initials Multiple Representation for this transaction.

.....
INITIALS OF TENANT(S)

.....
INITIALS OF LANDLORD(S)

ACKNOWLEDGEMENT

I have received, read, and understand the above information.

.....
(Signature of Tenant) (Date)

.....
(Signature of Landlord) (Date)

.....
(Signature of Tenant) (Date)

.....
(Signature of Landlord) (Date)



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